

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

202100553987CUPO: Brandon Dompe vs. Edison International

09/24/2026 in Department 41

**Motion to Compel Southern California Edison Company's Compliance with its Statements
of Compliance to Requests for Production, Set Two and for Sanctions**

Below is the Court's tentative decision with respect to the matter on calendar. The Court may adopt, modify, or change the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

If you wish to submit on the Court's tentative decision without appearing, please send an email to the following address by 8:00 a.m. on the date of the hearing with counsel for all parties copied on your email: courtroom41@ventura.courts.ca.gov. Please state on the subject line of your email: "SUBMISSION ON TENTATIVE", Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative decision is subject to change.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the Court. A "notice of ruling" in lieu of this procedure is not authorized.

The Court intends to rule as follows:

Plaintiff Brandon Dompe's Motion to Compel Compliance and/or Further Responses to Requests for Production, Set Two, is GRANTED in part.

The motion concerns RPD Nos. 54-57, 64, 71-78, and 81-91. Plaintiff principally seeks completion of production that SCE represented would be ongoing and, alternatively, verified further responses addressing whether responsive documents exist, cannot be located, or are being withheld.

The motion is timely. A motion to compel compliance under Code of Civil Procedure section 2031.320 is not subject to the 45-day deadline applicable to motions to compel further responses. To the extent Plaintiff alternatively seeks further responses under section 2031.310, SCE's responses combined objections with factual representations concerning its search and intended compliance but were not verified. The objections therefore were preserved, but the absence of verification permits the Court to require verified further responses.

Plaintiff has demonstrated good cause for further discovery. SCE's generalized assertion that it has produced all "non-objectionable" responsive documents does not adequately establish whether particular responsive documents do not exist, cannot be located after diligent search, or are being withheld pursuant to an objection. The appropriate remedy is therefore tailored

production and/or code-compliant verified responses rather than an order presuming that every document identified by Plaintiff necessarily exists.

Accordingly, no later than September 28, 2026, SCE shall complete the production, searches, and verified further responses ordered below:

1. As to RPD Nos. 55 and 87, complete production of responsive documents or serve a verified inability-to-comply response satisfying section 2031.230.
2. As to RPD Nos. 54, 56-57, 64, 71-78, 81-86, and 88-91, conduct the targeted searches identified in the motion and supporting evidence, produce any additional responsive, nonprivileged documents located, and serve verified further responses identifying whether production is complete. If responsive documents cannot be produced, SCE shall provide the information required by section 2031.230.
3. Specifically, as to RPD No. 56, SCE shall complete its search for the Pull No. 8 tower-loading worksheet and either produce it or provide a verified inability-to-comply response. As to RPD No. 54, SCE shall produce a legible standalone N1449-1 loading drawing if one remains within its possession, custody, or control. As to RPD No. 85, the ordered search is limited to the narrowed period of October 1, 2019 through May 31, 2020.
4. SCE shall identify responsive productions by request number. To the extent SCE withholds responsive material on attorney-client privilege or work-product grounds, it shall provide the particularized information required by section 2031.240, including a privilege log where necessary to permit evaluation of the claim. No privilege or work-product protection is deemed waived merely because a sufficient log has not previously been provided.

The Court selects the tight September 28 deadline because that is the operative fact-discovery cutoff; although the resulting compliance period is brief, the disputed requests have been outstanding for several months, and the Court declines to order completion of discovery beyond the existing cutoff absent an order extending that deadline. The September 24 hearing itself falls within the discovery-motion cutoff previously set by the Court.

Nothing in this order requires SCE to create a document, engineering analysis, photograph, video, or other record that does not exist. Nor does the order compel production of privileged material without further determination of any properly supported privilege claim.

Plaintiff's request for monetary sanctions is MOOT, Plaintiff having withdrawn the request in his reply.

Moving party to give notice.